

Court No. - 9

Case :- WRIT - C No. - 9772 of 2021

Petitioner :- Vinod Pratap Singh

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Sushil Kumar Tiwari

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Sanjay Yadav,Acting Chief Justice

Hon'ble Prakash Padia,J.

Re: Civil Misc. Urgency Application No.2/2021

There is no urgency in the matter.

Application is accordingly rejected.

Order Date :- 16.4.2021

N Tiwari

(Prakash Padia,J.) (Sanjay Yadav,A.C.J.)

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Hon'ble Prakash Padia,J.

Matter is taken up through video conferencing.

As the counsel for the petitioner is not audible to us, therefore, let this matter be posted in the week commencing 03.05.2021 as fresh.

Order Date :- 19.4.2021

Kirti

(Prakash Padia, J) (Sanjay Yadav, ACJ)

Court No. - 3

Case :- WRIT - C No. - 9772 of 2021

Petitioner :- Vinod Pratap Singh

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Sushil Kumar Tiwari

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

1. Heard Sri Sushil Kumar Tripathi, learned counsel for the petitioner; Sri Rakesh Kumar Tripathi, Advocate, holding brief of Sri Narendra Kumar Tiwari, learned counsel appearing for the respondent-corporation and learned Standing Counsel for the State-respondents.
2. Challenge has been raised to the recovery of Rs. 1,10,029/- sought from the petitioner towards electricity dues.
3. Submission of learned counsel for the petitioner is that the petitioner has never applied or consumed electricity and there is no case of theft against him. However, upon disputed demand of electricity dues being claimed from him, the petitioner had filed a complaint before the Consumer Grievance Redressal Forum (CGRF), Fatehpur under Clause 4.25 of the U.P. Electricity Supply Code, 2005 being Case No. 53 of 2019, which has remained pending till date.
4. In absence of any contrary facts being shown to us, we find no useful purpose would be served in keeping the present petition pending or calling for a counter affidavit, at this stage.
5. Accordingly, the present writ petition is **disposed of** with a direction that, in case, the petitioner places a copy of this order before Consumer Grievance Redressal Forum (CGRF), Fatehpur in Case No. 53 of 2019, within a

period of two weeks from today, the said forum shall necessarily conclude the proceeding in the aforesaid case, within a period of two months from the date of production of a copy of this order.

6. The recovery being pursued against the petitioner shall abide by the decision to be made by the Consumer Grievance Redressal Forum (CGRF), Fatehpur.

Order Date :- 17.8.2021

Abhilash